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Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

2012-03-28

Appeal No.

CIVIL APPEAL NO. 83 OF 2010

Judge

MR. JUSTICE MOHAMMAD AZAM KHAN, CJ.MR. JUSTICE RAJA SAEED AKRAM KHAN

Parties

RABIA AKHTER (APPELLANT) VERSUS MUHAMMAD AYUB, ETC. (RESPONDENTS)

Lawyers

CH. MUHAMMAD SIDDIQUE FOR APPELLANT. RAJA SAADAT ALI KAYANI FOR RESPONDENTS.

Statutes

AJK FAMILY COURTS ACT 1993 - S. 5, SCHEDULE IBID - S. 5, SCHEDULE IBID - S. 4
FAMILY COURTS PROCEDURE RULES, 1998 - RULE 3 INTERPRETATION OF STATUTES
DOCUMENTARY EVIDENCE

Judgment

MOHAMMAD AZAM KHAN, CJ.-This appeal by leave of the Court arises out of the judgment of the Shariat Court dated 22nd February, 2010, whereby the appeal filed by the appellants herein has been dismissed.

2. Necessary facts for the disposal of instant appeal are that the plaintiff, respondent No. 1 herein, filed a suit for jactitation of marriage on 24th August, 2006, in the Court of Civil Judge Sehnsa, who was vested with the powers of Judge Family Court, alleging therein that the Nikah of defendant/ appellant No. 1 with defendant/appellant No. 2 is fake, forged, against the law.

based on fraud>and against the facts which is liable to be cancelled. Defendant No. 1, on the basis of Nikah solemnised on 12th June, 2000, is lawfully wedded wife of the plaintiff. He has not divorced her. He also sought a perpetual injunction against defendant No. 2~ to restrain him from claiming defendant No. 1 as his wife. The defendants were summoned and in the written statement they raised a preliminary objection that the suit is filed on the basis of a forged power-of-attorney. The plaintiff has no cause of action to file a suit. The plaintiff is residing in England and defendant . No. 2 is a resident of Tehsil Dudyal, District Mirpur, therefore, the Court ha,s no territorial jurisdiction to entertain the suit. The plaintiff has divorced defendant No. 1 on 21st A* ' February, 2006. After the expiry of period of Iddat, defendant No. 1 has contracted marriage with defendant No. 2 on 26th June, 2006. The plaintiff has himself got prepared the divorce-deed. After necessary proceedings, the Trial Court decreed the suit on 15th April. 2007. Dissatisfied from the judgment and decree of the Trial Court, the defendants, appellants herein, filed an appeal in the Shariat Court. A learned single Judge in the Shariat Court dismissed the appeal vide impugned judgment on 22nd February, 2010.

3. The learned counsel for the appellants argued that the judgment of the .Shariat Court is not maintainable. The defendants/appellants brought on record the documents viz. a photostat copy of divorce-deed (Talaq-Nama), signed by respondent No. 1, Ex.DA, a certification issued by Muslim Law Council U.K. Ex.DB, a certification by Qazi Abdul Aziz Chishti, Imam and Khateeb of Jamia Islamia Ghausia Trust. Luton, Bedfordshire Ex.DC, to the effect that the plaintiff/ respondent No. 1 has divorced his wife, Rabia Akhter, a notice by Bank Giro Credit, Yorkshire to Rabia Akhter for payment ef water charges, Ex.DD, another notice for payment of charges Ex.DE and a Birth Certificate of Hamass Khans/o Muhammad Ayoub. Ex.DF, and photostat copy of "Nikah-Naina of Tausif Asghar Khan with Rabia Akhtef dated 26.6.2006, DG. The counsel contended that all these documents v ere received in evidence by the Trial Court without objection by the other party. He forcefully argued that when a document is received in evidence without objection, it is enjoined upon the Court to rely upon the same. He referred to the cases reported as Kabool Khan v. Shamoon and others [PLJ 2002 Lahore 425], Muhammad Sarwar and 3 others v. Jahangir Ahmad and 5 others [PLJ 2002 Lahore 1039] and Hafiz Tasadaq Hussain v. Lai Khatooh and others [PLD 2011 SC 296]. The learned counsel submitted that the plaintiff filed a suit for jactitation of marriage. A suit for jactitation of marriage can only be filed by a woman. A husband cannot fiie a suit for jactitation of marriage. The suit was liable to be dismissed on this sole ground' it was next contended that the plaintiff, respondent No. 1 herein, resides in England, while the defendant/appellant No. 2 resides in Tehsil Dudyal, District Mirpur. The Family Court Sehnsa had no territorial jurisdiction to entertain the suit. The suit was liable to be dismissed. It was lastly argued that the suit was filed without an authority. The suit was instituted on 24th August, 2006. while the power- of-attorney in favour of agent was executed on 31st October, 2006. The attorney had no authority to file the suit. The learned counsel further argued that under rule 4 of the AJ&K Family Courts Procedure Rules, 1998 the plaint shall be signed and verified by the plaintiff himself. The plaint is signed and verified by the counsel for the plaintiff/ respondent, therefore, the suit merits dismissal.

4. While controverting the arguments, Raja Saadat All Kayani, the learned counsel for respondent No. 1, argued that the judgment of the Shariat Court is perfectly legal. The appellants failed to point out any illegality in the impugned judgment. The appeal merits dismissal. The learned counsel forcefully contended that the Trial Court at Sehnsa has got the territorial jurisdiction to entertain the suit. Under rule 4 of the AJ&K Family Courts Procedure Rules, 1998, the suit has to be filed at the place where the defendant resides. Defendant No. 1 was residing in Sehnsa. The Family Court at Sehnsa has jurisdiction to entertain the suit. The learned counsel vehemently argued that the defendants/appellants herein produced photostat copies of certain documents in the Trial Court. The photostat copies are not admissible in evidence. Photostat copies were of such a record which lies in England and the copies are attested by the Oath Commissioner at Sehnsa. The Oath Commissioner who attested photostat copies did not appear in the Court as a witness, therefore, the photostat copies cannot be relied upon being not admissible in evidence. The learned counsel lastly argued that there are concurrent findings of facts recorded by two Courts below which cannot be disturbed by this Court.

5. We have heard the learned counsel for the parties and perused the record. Through the suit filed on 24th August, 2006 the plaintiff/respondent No. 1 claimed that defendant/ appellant No. 1, herein is his lawfully wedded wife. He has not divorced her.

The Nikah of defendant No. 1 with defendant No. 2 is fake, forged, against the law and Shariah, based on fraud, against the facts and liable to be cancelled. He requested for jactitation of marriage. He also sought perpetual injunction against defendant No. 2 that he shall refrain from claiming defendant No. 1 as his wife. The defendants/ appellants herein relied upon the documents Ex.DA, DB, DC, DD, DF and DG. All these documents except DD and DF are photostat copies of certain documents which are claimed to be prepared in England. Ex.DA is a photostat copy of divorce-deed (Talaq-Nama), allegedly executed by the plaintiff/ respondent No. 1 herein. The alleged divorce-deed (Talaq-Nama) is executed on 21st February, 2006. The photocopy attested by one Qazi Abdul Aziz Chishti on the same day, i.e. 21st February, 2006 was further attested by Tufail Hussain Bukhari, advocate, Sehnsa, on 7th March, 2007. If Muhammad Ayub has divorced his wife, Rabia Akhter, the original document must have been in her custody, but she has not produced the same. Instead, she has produced photostat copy which is attested, on the same day, i.e. 21st February, 2006 when it was prepared. There is another document on record, a certification issued by Muslim Law Council of England issued on 18th January, 2007, five months after the institution of suit. The third document Ex.DC is purported to be a letter issued by Qazi Abdul Aziz Chishti on 28th August, 2006 that Muhammad Ayub has divorced his wife, Rabia Akhter on 21st February, 2006. There is also a note on Ex.DC that the father's name of Muhammad Ayub has inadvertently been written as Risalat Khan. It is not mentioned by said Qazi that the alleged Talaq-Nama was written by him or someone else. A perusal of two documents shows that the Writing of both the documents is different. It is not in one hand. If the letter dated 28th August, 2006 is in the hand of Qazi Abdul Aziz then alleged Talaq-Nama dated 21st February, 2006 is not written in his hand, It cannot be relied upon. Ex.DD, a notice of some Bank in Yorkshire, for payment of charges is original document, while the other notice is a photostat copy. It is not clear that for what purpose the defendants brought on record these two documents. There is a birth certificate of a child, Hamass Khan, born to Rabia Akhter, wherein his father's name is entered as Muhammad Ayub. There is no dispute in respect of paternity of child. There is a photostat copy of alleged 'Nikah- nama' of appellant No. 1 and appellant No. 2. This photostat copy is also attested by Tufail Hussain Bukhari, Advocate, Sehnsa.

Syed Tufail Hussain Bukhari, the * « .

Oath Commissioner, who attested the documents, according to his stamp affixed on the

documents, practices in Tehsil Court Sehnsa. He attested the documents as "attested true copy". The document can only be attested in such a wording by the authority which is in custody of the original document. The Oath Commissioner at Sehnsa was not competent to attest such documents, the original of which were in England. The lower Courts correctly refused to consider these documents.

6. We have no quarrel with the rule of law laid down in the authorities titled *Kabool Khan v. Shamoon and others* [PLJ 2002 Lahore 425], *Muhammad Sarwar and 3 others v. Jahangir Ahmad and 5 others* [PLJ 2002 I, Lahore 1039] and *Hafiz Tasadaq Hussain v. Lal Khatoon and others* [PLD 2011 SC 296] wherein it is held that if the documents are duly tendered in evidence without any objection, thereafter the objection on admissibility of such documents cannot be raised at a later stage. But in the instant case the fact remains that the alleged documents are photostat copies, which cannot be relied upon in evidence. As regards the other document which is original that is not helpful to the case of the appellants. The certification issued by Qazi Abdul Aziz Chishti on 28th August, 2006 without referring to any record to the effect that Muhammad Ayub s/o Riasat Khan came to him on 21st February, 2006 and has divorced his wife Rabia Akhter and the name of father of Muhammad Ayub was inadvertently written as Risalat Khan in Talaq-Nama executed on 21st February, 2006, cannot be relied upon. The language of document itself casts serious doubt on it. Moreover, the said Qazi was not produced as a witness in the Trial Court. This document cannot be relied upon for proving the case.

H 7. So far as the question of jurisdiction is concerned, under rule 4 of the AJ&K Family Courts Procedure Rules, 1998, the Family Court in whose jurisdiction the cause of action wholly or in part arises or where the parties reside together shall have jurisdiction to try the suit. There is also a proviso to rule that in suits for dissolution of marriage or dower, the Court in local limits of which the wife ordinarily resides shall have jurisdiction. The instant suit is a suit for jactitation of marriage and according to the parties, defendant/ appellant No.

1, resides' in the limits of Family Court Sehnsa, therefore, the Family Court Sehnsa had jurisdiction to entertain the suit.

8. An important legal question which needs resolution is that the claim of the appellants is that the suit was filed without any authority. The suit was filed on 24th August, 2006 and the power-of-attorney was executed on 31st October, 2006, two months after the filing of suit. A perusal of record reveals that the suit was filed on 24th August, 2006 and the plaintiff himself signed the power-of-attorney (wakalat-namc) in favour of Sajit Nawaz and Shokat Ali, Advocates. The power-of-attorney in favour of Tahir Qayyum was executed on 31st October, 2006. He was authorised to look after the case. The suit was not filed through attorney Tahir Qayyum. It was directly filed by the plaintiff Muhammad Ayub. The objection has no force, therefore, the same is repelled.

9. We have also considered the argument that the plaint is signed and verified by the counsel for the plaintiff and not by the plaintiff himself as such it is not competently filed, thus it merits dismissal. Rule 3 of the Azad Jammu and Kashmir Family Courts Procedure Rules, 1998 deals with the institution of the plaints. For proper appreciation we deem it proper to reproduce the said rule which is as under "Institution of plaint: (1) A plaint under subsection (1) of section 7 shall be in writing, signed and verified by the plaintiff and shall be presented to the Court, having jurisdiction under rule 4 of these Rules by the plaintiff or through a counsel and where the plaintiff is a female by her agent.

(2) The plaint under sub-rule (1) shall also contain the following particulars (a) name of the Court in which the suit is brought - and the fact showing that it has jurisdiction: (b) name, description

and place of residence of the plaintiff; - , (c) name, description and place of residence of the defendant so far as can be ascertained; k(d) where the plaintiff or the defendant is a minor or a person of unsound mind, a statement to the effect; .

the fact constituting the cause of action; (f) the nature of the claim and valuation of the claim with particulars in brief and the relief claimed.” A perusal of rule 3(1) reveals that a plaint under subsection (1) of section 7 shall be in writing, signed and verified by the plaintiff and shall be presented in the Court having jurisdiction under rule 4 of these rules by the plaintiff or through a counsel.

The rule further lays down that where the plaintiff is a female, the suit may be filed by. her agent. Although the word “shall” has been used in rule 3(1) in the AJK Family Courts Procedure Rules, 1998, but there is no provision that non-compliance of such rule will result into rejection of plaint or any other penalty, It is a celebrated principle of interpretation of statutes that in absence of any penal provision in the rules, in case of non-compliance, the operation of rules shall be directory in nature and not mandatory. In a case titled Saeed-ud-Din v. Illrd Senior Civil Judge (East), Karachi and another [PLD 1992 Karachi 302] it was observed as under:- absence of any penal provision in the Rules in case of non-compliance of Rule 4 of the Sindh Muslim Family Courts Rules, 1965, subrule (2) will be taken to be directory in nature.” The non-signing of plaint and verification by the plaintiff himself will not affect the filing of the suit. The suit was competently filed in the Family Court.

10. Whether a suit for jactitation of marriage can be filed by a husband or not or it can only be filed by a woman/wife also an important question which requires resolution. Section 5 of the AJ&K Family Courts Act, 1993 deals with the question of jurisdiction. For proper appreciation of law, we deem it proper to reproduce section 5 which is as under:- A “Jurisdiction: The Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in the Schedule.” The above section postulates that the matters specified in the Schedule of the Act shall be exclusively heard by the Family Courts and the Family Court shall have jurisdiction to entertain, hear and adjudicate upon such matters. We feel it necessary to reproduce the Schedule of the Act which is as under “SCHEDULE: (1) Dissolution of marriage.

(2) Dower. - (3)P Maintenance.

(4) Restitution of conjugal rights.

(5) Custody of children.

' < (6) Guardianship.

(7) . Jactitation of marriage.

(8) Dowry.” The Family Court has exclusive jurisdiction to entertain, hear % j and adjudicate upon the matters enumerated in the Schedule.

Jactitation of marriage falls at serial No. 7 in the Schedule, The matter of jactitation of nmarriage was not initially part of the Schedule. It was inserted through an amendment brought in the Act on 23rd January, 1997. The Family Court has got exclusive jurisdiction for deciding the question of jactitation of marriage. What is “jactitation of marriage”? It will be useful to reproduce the meanings of words “Jactitation of marriage” given in different dictionaries:- Chamber’s 20th Century Dictionary (New Edition 1973) page 702.

Jactitation of marriage, pretence of being married to another. [L.L. jactitatio, onis-L. jactitare.

-atum, to toss about, make a display of, freq. of jactare. to throw.) Black's Law Dictionary (9th Edition) (page 910): Jactitation: 1. A false boasting or claim that causes an injury to another. [Cases: Libel and Slander. 132, C.J.S. Libel and Slander: Injurious Falsehood]. 2. Civil Law Slander of title.

Jactitation of marriage: (1) False and actionable boasting or claiming that one is married to another.

2. An action against a person who falsely boasts of being married to the complainant.

'Jactitation of marriage is a cause of action which arises when a person falsely alleges that he or she is married to the petitioner, and the remedy sought is of perpetual injunction against the respondent to cease making such allegations. The cause is now uncommon, in English municipal law and almost unknown-in the conflict of laws'. ' Webster's Third New International Dictionary (Volume II) page 1207: v Jactitation of marriage: False and actionable pretension that one is married to someone, xxx xxx xxx xxx. ' , Law Dictionary of Words and Phrases Judicially Defined (Edition 1986), page 406: Jactitation: Jactitation of marriage is an action for the false, malicious and unexcusable boast, an assertion by a person that Someoneelse is married to him or her. It is in the nature of a criminal suit; it has something in common with proceedings for defamation. Mohammadan Law provides for a suit for "jactitation of marriage", praying for injunction to restrain the defendant from falsely claiming to be the plaintiffs husband or wife. A declaratory suit may lie under section 34 of the Specific Relief Act, 1963; The dictionary meaning of expression "jactitation of marriage" that it is a false pretence of being married, raise pretence may be by a man or a woman. The term "jactitation of marriage" is of wide implication and would seem to cover an assertion by either of the spouses or by a third party, denying the marriage between the alleged husband and wife and would therefore include an action either by one of the spouses against the other or by the spouses against third party. It could safely be concluded that a suit can be filed by a person other than the spouses involved in the jactitation of marriage. And so can a suit be filed by the spouses, against third party with a view to prevent them from denying their marriage. A person may claim that a woman is not his wife or a wife may claim that she is not wife of defendant and he/she shall refrain from claiming as such. In a suit by a plaintiff that a woman is his lawfully wedded wife and another person, who claims to be her husband or the woman claims to be the wife of another person, the plaintiff may request for issuance of a prohibitory decree.

A suit for declaration that the defendant is not the husband or wife of the plaintiff and the defendant alleges to be wife or husband by the plaintiff is a suit for jactitation of marriage. In a case titled *Mst. Amina Begum v. Ghulam Nabi and 2 others* [PLD 1974 Lahore 78], after detailed survey of case-law, it was observed in paras 7 and 8 as under:- "7. The expression "Jactitation of marriage" is defined in the Wilson's Anglo-Mohammadan Law as a suit to have declared that the defendant is not the wife or the husband of the plaintiff. In Halsbury's Laws of England (Third Edition). Volume 12, page 225, paragraph 418, the form of suit of jactitation has been dealt with as follows B 'False Boast of marriage.-If anyone persistently and falsely alleges marriage with another, the latter may obtain in a suit for jactitation of marriage a decree of perpetual silence. Only the person complaining that he has so been misrepresented can present such a petition. It is now a rare procedure.' A suit for jactitation is the only case in which matrimonial suit can, as of right, be proceeded without prima facie proof of a marriage de facto.

In *Mir Asmat Ali v. Mahmudul Nisa* [ILR 20 All. 96] the object of the suit was given as follows:- .

'There can be no doubt that unless a man is entitled by means of the Civil Courts to put to silence a woman who falsely claims to be his wife, the man and others may suffer considerable hardships and his heirs may be harassed by false claims after his death.' These quotations undoubtedly support the * .

respondent. They lay down the form of a suit for jactitation of marriage. The question, however, is whether this form is exhaustive of the above suits and whether the expression "jactitation of marriage" has been used in the Schedule to the Family Courts Act as referring to a suit of this form. I am of the view that this form is not exhaustive. It is only the usual form in which petitions for jactitation of marriage have been made in Ecclesiastical Courts.

/ . ' * .

8. The word "jactitation" according to the Twentieth Century Dictionary means "bragging, public assertion, esp. ostentatious and false". "Jactitation of marriage" means "pretence of being married to another". In *Goldstone v. Goldstone* [(1922) 127 L.T.R. 32] it was held that:- 'Jactitation of marriage is an unwarrantable assertion that marriage exists and it has been within the jurisdiction of this Court for many years to intervene to put to silence the person making a false declaration of marriage.' The Dictionary meaning of the expression jactitation of marriage and the general definition given in this authority would go to, prove that jactitation is a false pretence of being married. It is not material whether the false pretence is made by the plaintiff or the defendant. What is relevant is that the boaster or pretender may be put to silence with the intervention of the Court. If it be essential to file a suit for permanent injunction to silence the person making the false claim, a suit for jactitation must be filed by the party denying the marriage.

But such a relief is not necessary either under the law of England or the law in Pakistan. Thus in *Stuck v. Schuck* [(1950) 66 TLR 1179] and *Igra v.*

Igra [AIR 1951 Pat. 404] both of which are referred to in *Nur Shafi v. Nur Shafi* [(1953) AELR 783], although the relief was asked for in the form of an injunction to restrain the respondents from asserting the marriage, such relief was refused and negative declarations were made. These cases arose out of petitions, for jactitation of marriage i.e. for wrongfully asserting that a marriage existed where it did not. In Pakistan, section 42 of the Specific Relief Act enables a person to file suit for declaration of his legal character. It has been held that suits for negative declaration are also competent as section 42 is not exhaustive. A suit lies for a declaration that plaintiff is or is not the husband or wife of the defendant. *Waryam Singh v.*

Phewon [50 PR 1901], *Jaskaur v. Mehtab* [26 PR 1903]. In *Salim Ullah Baig v. Matin Begum* [PLD 1959 Lah. 429] it was held that a suit for declaration simpliciter that defendant was not adopted son of plaintiff, is competent. In *Sughran V. Rehmat Ali* [PLD 1965 Lah.

580] Muhammad Iqbal, J., as he then was, observed that it is wrong to say that a suit for a negative declaration is not competent at all in law. In some cases negative declarations are granted by the Court and they, in certain circumstances, are necessary. In cases where some one claims to be the son of person, the latter can by all means seek a declaration against him that his assertion is not correct. There indeed may be no immediate threat to the property of the plaintiff but if the assertion is not correct it might tarnish his name in society and further result in serious complications in future." It was further observed as under:-- "I do not see any reason why a suit for jactitation of marriage will not include a suit for declaration by a person falsely posing that he is the spouse of the defendant. In my view any declaration as to the status where one party alleges marriage and the other denies, it will amount to a decree for jactitation of

marriage.” In *Tajoo vs. Mst. Satran* [PLD 1974 Lahore 105] it was observed as under:- “.....It is clear from all these citations that a suit for a declaration that the defendant is not the husband or wife of the plaintiff and that the defendant alleges to be the wife or husband of the plaintiff, is a suit for jactitation of marriage. The present suit falls under this category and could, therefore, be filed only before a Family Court.” In *Mst. Zohran Bibi v. Manzoor Ahmad and 2 others* [PLD 1975 Lahore 318] it was observed at pages 321 to 322 as under:- “6. Coming to merits of the contention raised in this case, learned counsel for the respondent could not deny that in the contents of the plaint, it is asserted as one of the basis of the suit that the appellant having been divorced by the respondent through an effective talaq, continues to harass him by claiming herself to be his wife and seeking remedies against him accordingly. It also is an admitted position that the respondent claimed in the plaint that on account of talaq the appellant is no more his wife but despite that she and her codefendants were denying these facts, therefore, a cause of action had arisen. In these circumstances, % learned counsel had to admit that in pith and substance the suit was for a declaration that by operation of law the talaq having become effective, the appellant could not claim to be the respondent’s wife. That being the position, his case would be covered by those of *Mst. Amina Begum* and *Tajoo* relied upon by. the learned counsel for the appellant. If that is so, the Civil Court would have no jurisdiction in the matter because this suit for jactitation of marriage would be exclusively triable by a Family Court.” 11. From the survey of above case-law we have reached the conclusion that the Family Court has exclusive jurisdiction to try a suit for jactitation of marriage.

The result of above discussion is that finding no force in this appeal it is hereby dismissed with no order as to costs.

Shariat Court Upheld/Appeal Dismissed.

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